

INDIA'S OPTIONS



Stolt Valor

- Join the multi-national force of countries like the US, Germany, France and Malaysia, who conduct patrols in the Red Sea. Deploy patrol ships, tankers and maritime reconnaissance aircraft in the vicinity.
- Mount rescue operations to free Indian crew while they are being held hostage off Somalia.
- Insist on non-lethal security measures for Indian-flagged vessels plying through the Red Sea. These include electrified fences and light- and sound-repellents to deter pirates.

Seafarers Are Human Beings



ence in doing so. In 1988 a naval frigate chased and intercepted a freighter with mercenaries fleeing an aborted coup in the Maldives; five years later, marine commandos stormed the LTTE arms freighter *MV Ahat*, and in 1999 a naval missile boat and Coast Guard cutters rescued the pirated freighter *Alondra Rainbow* from Indonesian pirates as it was barrelling through the Arabian Sea.

In stark contrast, the Indian Government's response to the hijacking of the *Stolt Valor* has been cautionary, even pusillanimous. Minister of State for External Affairs, Anand Sharma, says, "India is being helped by neighbouring powers and international agencies are working with us to free the sailors." However, two requests by the Indian Navy to undertake joint anti-piracy patrols off Somalia and to authorise the navy chief to be designated as the authority to tackle piracy on the high seas, were shot down by the Ministry of Defence and, reportedly, by the Ministry of External Affairs. The Government, instead, responds to requests for intervention on a case-by-case basis in consultation with the law, defence and external affairs ministries. "The Government's apathy towards its citizens is appalling," says V. Manoj Joy, coordinator of Sailor's Helpline that helps families of mariners in distress. Mariners cite cases like that of French Navy which relentlessly pursued and captured Somali pirates in two recent cases where French nationals were involved.

India is a signatory to several UN resolutions, including the United Nations Conventions on Law

CALL FOR ACTION: Affected families march

of the Seas (UNCLOS), which mandates it to act against piracy. "We are trying our best but the ship is at a Somali port and we have no agreement (to tackle the situation). We can act only as per the law," Defence Minister A.K. Antony said last month after the *Stolt Valor* was hijacked. Naval officials say UN Security Council Resolution 1838, unanimously passed on October 7, authorises "all necessary means", including naval and air force, against Somali pirates. India is a signatory to the 2006 Indo-US Maritime Security Cooperative Framework where it undertook to conduct joint anti-piracy patrols. Yet, the Indian Government is wary of allowing its blue-water force from participating in joint patrolling.

There are two ways of looking at this malevolence. Piracy could be seen as yet another maritime hazard that merchantmen, who are prohibited from carrying lethal weapons, may have to live with. There is also how a rising power deals in a region it explicitly mentions as falling in its maritime security domain—from the mouth of the Red Sea to the Malacca Straits and the Persian Gulf to Antarctica. "It is our backyard and we are not prepared to police it," says an officer. Officials suggest preventive—active patrolling—and curative—conducting rescue operations—measures.

"The long-term challenge for India, as indeed for every other major nation, is its ability and willingness to contribute to international peace and stability," Antony said at a recent seminar on power projection. Wise words. But clearly those the Government is not prepared to keep. ■